

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK, LLC

COMPLAINANT,

v.

SHENZHEN UNIFELIX SCM LIMITED

RESPONDENT.

COMPLAINANT'S REPLY BRIEF

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INTRODUCTION

Initially, Complainant, Way Interglobal Network, LLC (“Way” or “Complainant”) objects to Respondent Shenzhen Unifelix SCM Limited’s Response to Complainant’s Brief (“Response Brief”) and its relating filings in their entirety as being untimely. The deadline for Respondent, Shenzhen Unifelix SCM Limited (“Unifelix” or “Respondent”) to file a response to Complainant’s Brief was October 6, 2023 per the Revised Briefing Schedule. Unifelix’s Response Brief and related filings were received and filed in the early morning of October 7, 2023. Under 46 CFR §502.116, “[t]he date of service of documents served by parties will be the date when the document is transmitted by email...” The FMC is in Washington D.C. and falls within Eastern Daylight Time. Under 46 CFR §502.101, “[i]f the presiding officer prescribes or allows an act, event, or default by reference to a specific date, that date shall govern.” If Respondent realized that due to time zone differences its Response Brief would not be filed or received by October 6, 2023, it should have requested a brief enlargement of time to cover the short time needed under 46 CFR §502.215 and §502.102, but it did not. As such, “good cause” does not exist to enlarge the time for Respondent to file the Response Brief.

Next, Way objects to the Declaration of Rena Huang in its entirety because it was served on October 7, 2023 as an unsigned declaration. It was not until October 9, 2023 (well past the filing deadline) that a signed declaration was provided. As with the Response Brief, Unifelix did not request an enlargement of time under 46 CFR §502.215 and §502.102 to file a signed declaration or otherwise provide an explanation for the late filing. The unsigned declaration violates 46 CFR 502.6, which states:

(c) Wherever, under any rules of this part, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn declaration, verification, certificate, statement, oath, or affidavit, in writing of the person making the same (other than a deposition under § 502.143 or

§ 502.144), such matter may, with like force and effect, be supported, evidenced, established, or proved by the unsworn declaration, certificate, verification, or statement, in writing of such person which is subscribed by such person, as true under penalty of perjury, in substantially the following form:

(1) If executed without the United States: “I declare (or certify, verify, or state) under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.”

(2) If executed within the United States, its territories, possessions, or commonwealths: “I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct.” [Rule 6.]

Because Ms. Huang’s declaration was not “executed,” it is invalid. “This fails to comply with the Commission's requirement that pleadings, documents, or other papers filed with the Commission be signed and verified under oath and undermines the credibility of Respondent's statements and assertions. 46 C.F.R. §§ 502.6, 502.62(b).” *Muhammad Rana v. Michelle Franklin, D.B.A. “The Right Move” Inc.*, 2020 FMC LEXIS 156, *36 (referring to a respondent who did not sign pleadings under oath or penalty of perjury).

Complainant could not find an FMC decision exactly referencing an unsigned declaration with the fact pattern of this matter except perhaps one which allowed an unsigned declaration because the party was pro se.¹ However, 46 CFR 502.6 is substantially similar to 28 USC 1746. “Thus, as other courts have held, Section 1746 requires that an unsworn declaration be signed. Accordingly, numerous other courts have struck unsigned declarations from the record or affirmed a district court's decision to do so, explaining that unsigned declarations are not competent summary judgment evidence because they do not satisfy the statutory requirements.” *Patterson v. O'Bar Wrecker Serv., LLC*, No. 1:22-CV-051-H, 2023 U.S. Dist. LEXIS 138293, at *7-8 (N.D.

¹ “As an initial matter, Mr. Waalkes’ affidavit is unsworn and fails to ‘declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct,’ as required. See 46 C.F.R. § 502.6 (Verification of documents). Although the statement is unsworn, it will still be admitted into evidence and considered, as Respondent is acting *pro se*.” *B & G Futures Inc., Revocation of Ocean Transportation Intermediary License No. 026512NF*, 2023 FMC LEXIS 38, *23-24.

Tex. July 31, 2023).² “An unsigned declaration is of course a nullity.” *Cranford v. Henderson*, No. CV 05-5842-FMC (JTL), 2008 U.S. Dist. LEXIS 17470, at *10 n.2 (C.D. Cal. Jan. 17, 2008).

Finally, in this Reply Brief, references to Complainant’s Appendix will be denoted as CX “___”.

RESPONSE TO RESPONDENT’S PROPOSED FINDINGS OF FACT

1. Way shipped 46 containers with Unifelix from China and arriving at Way’s warehouse in Illinois between May 26 and July 11, 2022. (Decl. of R. Huang ¶¶6-8).

RESPONSE: Denied to the extent that Unifelix does not list the container numbers in this statement or otherwise cite to the evidence for Way to verify this information or the number of containers cited by Unifelix. Because it was unsigned, the Declaration of Ms. Huang is a nullity and should not be considered as evidence. Notwithstanding, Ms. Huang’s Declaration also does not cite or reference any specific sources of evidence but instead makes blanket statements.

Way admits that there were containers shipped by Unifelix and believes the 46 containers are those referenced in the email chain at CX 6066-6091. (CX 6084, see also CX 6086 which matches the amount in Respondent’s statement).

Beginning in early July 2022, Way began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent’s invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent’s invoices. (¶19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit,

² “In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12.

Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)).

2. Total sea freight for the 46 containers was \$702,560, and truck delivery charges were \$118,407, less a payment of \$74,350, which brought the total amount of transportation costs incurred but unpaid by Way as of August 22, 2022, to \$746,617. At that time, all of those payments were overdue, with some as many as 50 days late. (Decl. of R. Huang ¶9)

RESPONSE: Denied. Initially, Unifelix does not list the container numbers in this statement or otherwise cite to the evidence for Way to verify this information or the number of containers cited by Unifelix. Because it was unsigned, the Declaration of Ms. Huang is a nullity and should not be considered as evidence. Notwithstanding, Ms. Huang's Declaration also does not cite or reference any specific sources of evidence but instead makes blanket statements.

Way admits that there were containers shipped by Unifelix and believes the 46 containers are those referenced in the email chain at CX 6066-6091. (CX 6084, see also CX 6086 which matches the amount in Respondent's statement). If that is correct, Unifelix emailed Way on July 25, 2022 (CX 6084) that it received payment for the freight for the 46 containers, yet the spreadsheet attached to the August 9, 2022 email does not indicate payment for the freight. This is an example of the confusion Way had in paying invoices from Respondent without proper backup documentation and of the sloppy record keeping which required an extensive audit in July 2022. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)).

Way has been unable to find specific information in the evidence regarding the alleged trucking payments to admit or deny that statement. The emails dated August 22, 2022 from

Unifelix or its US agent, Celestial Freight, do not total or reference 46 containers, but instead 19 of the 46 containers. (See, for example, CX 6195-6209). Respondent also fails to mention that after Way's audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices. (CX 6074-6076).

3. Any actual problems with Unifelix's invoices or documentation on the shipments other than to demand a reduction. (Decl. of R. Huang; Email chain between Way and Unifelix).

RESPONSE: Denied because this statement is unintelligible and the Declaration of Ms. Huang is a nullity and should not be considered as evidence. Notwithstanding, Ms. Huang's Declaration does not cite or reference any specific sources of evidence but instead makes blanket statements and Unifelix otherwise does not state an "exact citation to evidence that the party contends will support the proposed finding of fact," in violation of the instruction contained within the Scheduling Order dated February 8, 2023. "Judges are not like pigs, hunting for truffles buried in briefs." *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir. 1991).

Regardless, Way again states that beginning in early July 2022, Way began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent's invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent's invoices. (¶19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)). After Way's audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices (not part of the 20 Containers). (CX 6074-6076).

4. Way initially did not respond to invoices or repeated emails seeking payment, but, in the end, paid the invoices less a discount that it demanded with no legitimate explanation. (Decl. of R. Huang ¶18; Email chain between Way and Unifelix SHENZHEN 441)

RESPONSE: Denied. SHENZHEN 441 (believed to be CX0453 of Respondent's Appendix but the Bate number does not exactly match [SHENZHEN vs. SHENZHEN-DOCPROD1]) actually references a July 21, 2022 email discussing a revised amount due from Unifelix of \$746.617, not a discount demanded by Way "with no legitimate explanation." While the Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence, ¶18 alleges that Way did not provide documentation of errors in Unifelix's invoices. That is another example of an inaccurate statement. For example, in an email dated July 28, 2023, Way advised that it was time-consuming to verify the availability of the containers since Unifelix would not provide documentation such as a bill of lading (CX 5591), and on July 26, 2022 Way requested supporting paperwork for invoices and "that the accuracy of the invoicing we have received continues to be a major issue, which delays your payment and creates significant confusion. I have attached a recent example where invoicing has been generated well in advance of any receipt of product." (CX 5595). Both of these emails are examples of the issues that Way had with Unifelix's invoices.

5. Due to the unforeseen and uncontrollable delays caused by port congestion and the large amount owed by Way due to its late payments, Unifelix lacked sufficient cash and credit to pay the VOCCs and trucking companies to transport an additional 104 containers of Way's cargo, including the 20 at issue in Way's complaint. (R. Huang Decl. ¶10)

RESPONSE: Denied. Unifelix does not list the container numbers in this statement or otherwise cite to the evidence for Way to verify this information including the number of

containers cited by Unifelix or that it includes the at issue 20 Containers. While the Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence, the cited paragraph in Ms. Huang's likewise only states that "[t]hese late payments put extreme financial pressure Unifelix, making continuing on the prior arrangement infeasible." Unifelix's financial pressures had nothing to do with Way. As early as June 14-15, 2022, while most of the 20 Containers were in transit from China (CX 188-193, 203-271, 332-346, 398-402, 431-435, 549-553, 591-595, 634-638, 678-682, 723-727, 769-780, 1116-1127, and 1348-1391), Unifelix requested that Way pay extra because of financial pressure on its company. (CX 5-7).

6. All containers were transported under Unifelix's house bills of lading. (Decl. of R. Huang ¶13; Decl. of G. Kardian ¶¶9-11)

RESPONSE: Admitted.

7. The 20 containers at issue in this matter are TCNU6557513, TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TCNU6134091, TGBU9704789, TXGU7117086, TXGU7120114, CLHU8963040, FANU1742269, TXGU7119812, TXGU7120330, TXGU7118550, BEAU4986763, UACU5979959, TXGU7118415, TXGU7120120, and TCNU6756449 (the "20 Containers"). (Way's Complaint)

RESPONSE: Admitted.

8. Therefore, Unifelix negotiated with Way to have Way's payment for ocean freight made prior to delivery for the remaining shipments, and for Way to contract with the drayage companies to pick up the containers from the railyards for delivery to Way's warehouse. (Decl. of R. Huang ¶¶14-16; Email chain between Way and Unifelix, SHENZHEN 435-45)

RESPONSE: Denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence. To the extent that this statement implies a change to the Transport Contract, there was not a negotiation to change any of the terms of the Transport Contract. SHENZHEN 435-441 (believed to be CX 0447-CX0453 of Respondent's Appendix but the Bate number does not exactly match [SHENZHEN vs. SHENZHEN-DOCPROD1]) is an email chain that includes a request by Way for invoices without mistakes so that Unifelix was paid on time. It was not a blanket agreement for payment without confirmation that the amounts were correct and in accordance with the Transport Contract. Admitted that to the extent the invoices were correct, Way gave instructions that the invoices were to be paid.

9. These terms were negotiated in emails and over Zoom and telephone calls between July 19 and July 26, 2022, during which Unifelix explained the changes were necessitated due to the extreme financial stress caused by Way's failure to timely pay. (Decl. of R. Huang ¶¶6-15; Email chain between Way and Unifelix, SHENZHEN 437)

RESPONSE: Admitted the parties had telephone calls but otherwise denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence. To the extent that this statement implies a change to the Transport Contract, there was not a negotiation to change any of the terms of the Transport Contract.

SHENZHEN 437 (believed to be CX0449 of Respondent's Appendix but the Bate number does not exactly match [SHENZHEN vs. SHENZHEN-DOCPROD1]) is an email that invoices from Unifelix without mistakes. Unifelix's financial pressures had nothing to do with Way. As early as June 14-15, 2022, while most of the 20 Containers were in transit from China (CX 188-193, 203-271, 332-346, 398-402, 431-435, 549-553, 591-595, 634-638,

678-682, 723-727, 769-780, 1116-1127, and 1348-1391), Unifelix requested that Way pay extra because of financial pressure on its company. (CX 5-7).

Beginning in early July 2022, Way began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent's invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent's invoices. (¶19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)). After Way's audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices (not part of the 20 Containers). (CX 6074-6076).

10. During that time, Unifelix also repeatedly notified Way that demurrage was accruing on its cargo, including the 20 Containers, and that immediate payment of the ocean freight should be made so that Way could pick up the cargo before the demurrage accumulated. (Decl. of R. Huang; Email chain between Way and Unifelix)

RESPONSE: Denied. Unifelix does not state an "exact citation to evidence that the party contends will support the proposed finding of fact," in violation of the instruction contained within the Scheduling Order dated February 8, 2023. "Judges are not like pigs, hunting for truffles buried in briefs." *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir. 1991). Because it was unsigned, the Declaration of Ms. Huang is a nullity and should not be considered as evidence.

As Unifelix does not provide a date certain in its statement, Way again states that beginning in early July 2022, Way began to realize that Respondent was providing

inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent's invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent's invoices. (¶19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)). After Way's audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices (not part of the 20 Containers). (CX 6074-6076).

On July 21, 2022, Respondent, through Duke Zhang, its overseas coordinator, instructed its us agent, Celestial Freight Solutions, to not release a shipment, which is believed to include container CLHU8963040 (one of the 20 Containers) based on the indication from Celestial Freight Solutions in its production, and hold the pickup number for an unknown container. (CX 91).

On August 1 and 2, 2022, Respondent notified Complainant that 19 of the 20 Containers were in California. (¶32, Declaration of Andrew McKenna (CX 7386-7403); and chart in ¶38, pp. 10-11, of Complainant's Brief with references).

In mid to late August, and into September and October 2022, the 20 Containers were loaded onto a train for transportation from the ports in California to the railyard in Chicago. (¶17, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶35, Declaration of Andrew McKenna (CX 7386-7403); and chart in ¶42, pp. 11-12, of Complainant's Brief with references).

Demurrage began to accrue for some of the 20 Containers while the Parties were in a dispute over the unrelated containers that lasted until or around September 9, 2022. (¶37,

Declaration of Andrew McKenna (CX 7386-7403)). During that time, Way asked for the status of the 20 Containers. (CX 6354). Unifelix would not release the 20 Containers until charges for other containers were paid, and sea freight for the 20 Containers were paid, in violation of the Transport Contract. (CX 6350-6351).

By September 9, 2022, Way offered to pay \$449,575 for outstanding charges listed by Respondent (the total of which was \$465,270 listed by Respondent without backup documentation) after a review of Respondent's invoices: \$412,540.00 for payment in full for sea freight for 28 containers, including the 20 Containers; \$10,400.00 for partial payment of delivery fees for 8 unrelated containers (the delivery fees listed by Unifelix were significantly above market rate); and \$26,635.00 for unknown additional costs for 8 unrelated containers under protest. (CX 82-83). (¶40, Declaration of Andrew McKenna (CX 7386-7403)).

Respondent agreed to the payment of \$449,575 on September 2, 2022. (CX 82). (¶41, Declaration of Andrew McKenna (CX 7386-7403)).

After payment, on September 14, 2022, Respondent requested the pickup numbers for the 20 Containers. (CX 169 (with copies appearing in the sections of the Appendix for each container)). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶43, Declaration of Andrew McKenna (CX 7386-7403)).

On September 15, 2022, Respondent instructed its US agent, Celestial Freight Solutions, to hold all of the pickup numbers for the 20 Containers and not release the 20 Containers until all demurrage charges had been paid. (CX 93, 112). (¶44, Declaration of Andrew McKenna (CX 7386-7403)).

Demurrage had accrued on the 20 Containers because Respondent would not provide the trucking services from the Chicago rail station to Complainant's local warehouse. (¶25,

Declaration of Salvatore B. Guasto (CX 7404-8011)). Without the pickup numbers, the 20 Containers continued to accrue demurrage charges. (§45, Declaration of Andrew McKenna (CX 7386-7403)).

The unpaid demurrage charges listed in the September 15, 2022 email (CX 93, 112) were for the following containers which were NOT part of the 20 Containers: UFS22050434 (container FANU1103798)(CX 114-115); UFS22050690 (container FSCU7164495)(CX 114-115); UFS22050740 (container HLXU8148845)(CX 114-115); UFS22050783 (container HLBU2241172)(CX 150); UFS22060607 (container HLBU1011473)(CX 150); UFS22050423 (container FANU1503412)(CX 114-115); and a MSK invoice in the amount of \$76,540 which correlates to 19 unrelated containers (CX 4615-4617). (CX 93, 112). (§27, Declaration of Salvatore B. Guasto (CX 7404-8011)).

In that same September 15, 2022 email, Respondent told its US agent, Celestial Freight Solutions, that Complainant had a very bad reputation and delayed for a long time to process payment to Respondent. (CX 93, 112). (§46, Declaration of Andrew McKenna (CX 7386-7403)). On September 17, 2022, Cendy Rodriguez with Celestial Freight Solutions told Complainant that “[d]ue to very overdue invoices and high demurrage, destination carrier will not release the final 20 containers until your company clears all attached invoices.” (CX 96). (§47, Declaration of Andrew McKenna (CX 7386-7403)).

On October 10, 2022, pickup numbers were finally released for the following containers which were part of the 20 Containers: TCNU6557513, TXGU7117086, TXGU7120114, CLHU8963040, FANU1742269, TXGU7119812, TXGU7120330, TXGU7120120, TXGU7118550, BEAU4986763, and TCNU6756449. (CX 174-175). (§23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (§49, Declaration of Andrew McKenna

(CX 7386-7403)). On October 24, 2022, Respondent told Celestial Freight Solutions to hold containers TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, and TGBU9704789 (all part of the 20 Containers) until all demurrage was paid. (CX 102-103). (¶51, Declaration of Andrew McKenna (CX 7386-7403)). On October 24, 2022, Celestial Freight Solutions (US agent for Respondent) released the pickup number for 7 more containers (TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TGBU9704789, and TXGU7118415) (all part of the 20 Containers). (CX 423, with copies in the respective folders for each applicable container in the Appendix). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶54, Declaration of Andrew McKenna (CX 7386-7403)). Container UACU5979959 was released on November 2, 2022. (CX 1462-1485).

11. Under this agreement, Way agreed to arrange and pay for the local trucking for the shipments directly, and for Way to pay Unifelix the ocean freight prior to delivery. The freight rates for ocean shipment remained unchanged. (Decl. of R. Huang ¶15)

RESPONSE: Denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence. To the extent that this statement implies a change to the Transport Contract, there was not a negotiation to change any of the terms of the Transport Contract. SHENZHEN 435-445 (believed to be CX 0447-CX0457 of Respondent's Appendix but the Bate number does not exactly match [SHENZHEN vs. SHENZHEN-DOCPROD1]) is an email chain that includes a request by Way for invoices without mistakes so that Unifelix was paid on time. It was not a blanket agreement for payment without confirmation that the amounts were correct and in accordance with the Transport Contract.

12. These changes were necessitated by Way's prior breach of contract, which, in combination with the port congestion, both of which put Unifelix in a financial position that it

could not carry the debt for the ocean freight for the entire voyage or prepay trucking companies for local delivery of Way's cargo. (Decl. of R. Huang 10-14)

RESPONSE: Denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence.

Unifelix's financial pressures had nothing to do with Way. As early as June 14-15, 2022, while most of the 20 Containers were in transit from China (CX 188-193, 203-271, 332-346, 398-402, 431-435, 549-553, 591-595, 634-638, 678-682, 723-727, 769-780, 1116-1127, and 1348-1391), Unifelix requested that Way pay extra because of financial pressure on its company. (CX 5-7).

Beginning in early July 2022, Way began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent's invoices. (CX 51). (§19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent's invoices. (§19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (§20, Declaration of Andrew McKenna (CX 7386-7403)).

There is an email dated July 25, 2022 which also references that Way made a payment of \$746.617 for 46 containers. (CX 6084).

After Way's audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices (not part of the 20 Containers). (CX 6074-6076).

Demurrage began to accrue for some of the 20 Containers while the Parties were in a dispute over the unrelated containers that lasted until or around September 9, 2022. (§37, Declaration of Andrew McKenna (CX 7386-7403)). During that time, Way asked for the

status of the 20 Containers. (CX 6354). Unifelix would not release the 20 Containers until charges for other containers were paid, and sea freight for the 20 Containers were paid, in violation of the Transport Contract. (CX 6350-6351).

By September 9, 2022, Way offered to pay \$449,575 for outstanding charges listed by Respondent (the total of which was \$465,270 listed by Respondent without backup documentation) after a review of Respondent's invoices: \$412,540.00 for payment in full for sea freight for 28 containers, including the 20 Containers; \$10,400.00 for partial payment of delivery fees for 8 unrelated containers (the delivery fees listed by Unifelix were significantly above market rate); and \$26,635.00 for unknown additional costs for 8 unrelated containers under protest. (CX 82-83). (¶40, Declaration of Andrew McKenna (CX 7386-7403)).

Respondent agreed to the payment of \$449,575 on September 2, 2022. (CX 82). (¶41, Declaration of Andrew McKenna (CX 7386-7403)).

After payment, on September 14, 2022, Respondent requested the pickup numbers for the 20 Containers. (CX 169 (with copies appearing in the sections of the Appendix for each container)). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶43, Declaration of Andrew McKenna (CX 7386-7403)).

On September 15, 2022, Respondent instructed its US agent, Celestial Freight Solutions, to hold all of the pickup numbers for the 20 Containers and not release the 20 Containers until all demurrage charges had been paid. (CX 93, 112). (¶44, Declaration of Andrew McKenna (CX 7386-7403)).

Demurrage had accrued on the 20 Containers because Respondent would not provide the trucking services from the Chicago rail station to Complainant's local warehouse. (¶25, Declaration of Salvatore B. Guasto (CX 7404-8011)). Without the pickup numbers, the 20

Containers continued to accrue demurrage charges. (¶45, Declaration of Andrew McKenna (CX 7386-7403)).

The unpaid demurrage charges listed in the September 15, 2022 email (CX 93, 112) were for the following containers which were NOT part of the 20 Containers: UFS22050434 (container FANU1103798)(CX 114-115); UFS22050690 (container FSCU7164495)(CX 114-115); UFS22050740 (container HLXU8148845)(CX 114-115); UFS22050783 (container HLBU2241172)(CX 150); UFS22060607 (container HLBU1011473)(CX 150); UFS22050423 (container FANU1503412)(CX 114-115); and a MSK invoice in the amount of \$76,540 which correlates to 19 unrelated containers (CX 4615-4617). (CX 93, 112). (¶27, Declaration of Salvatore B. Guasto (CX 7404-8011)).

In that same September 15, 2022 email, Respondent told its US agent, Celestial Freight Solutions, that Complainant had a very bad reputation and delayed for a long time to process payment to Respondent. (CX 93, 112). (¶46, Declaration of Andrew McKenna (CX 7386-7403)). On September 17, 2022, Cendy Rodriguez with Celestial Freight Solutions told Complainant that “[d]ue to very overdue invoices and high demurrage, destination carrier will not release the final 20 containers until your company clears all attached invoices.” (CX 96). (¶47, Declaration of Andrew McKenna (CX 7386-7403)).

On October 10, 2022, pickup numbers were finally released for the following containers which were part of the 20 Containers: TCNU6557513, TXGU7117086, TXGU7120114, CLHU8963040, FANU1742269, TXGU7119812, TXGU7120330, TXGU7120120, TXGU7118550, BEAU4986763, and TCNU6756449. (CX 174-175). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶49, Declaration of Andrew McKenna (CX 7386-7403)). On October 24, 2022, Respondent told Celestial Freight Solutions to hold

containers TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, and TGBU9704789 (all part of the 20 Containers) until all demurrage was paid. (CX 102-103). (¶51, Declaration of Andrew McKenna (CX 7386-7403)). On October 24, 2022, Celestial Freight Solutions (US agent for Respondent) released the pickup number for 7 more containers (TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TGBU9704789, and TXGU7118415) (all part of the 20 Containers). (CX 423, with copies in the respective folders for each applicable container in the Appendix). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶54, Declaration of Andrew McKenna (CX 7386-7403)). Container UACU5979959 was released on November 2, 2022. (CX 1462-1485).

13. In addition to the financial pressure caused by port congestion and Way's failure to pay on time, Way stopped responding to communications at the time, which forced Unifelix to contact the shippers/Way's suppliers to obtain payment for the ocean freight incurred to ship Way's cargo. No false or defamatory statements were made in those communications about Way. (Decl. of R. Huang ¶11)

RESPONSE: Denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence. Regardless, ¶11 of Ms. Huang's Declaration references emails at CX 5-11, 30. CX 5-10 are emails from June 2022 requesting that Way pay early because of the financial pressures on Unifelix (which had nothing to do with Way).

CX 11 is an email from Respondent dated July 25, 2022 where it requested that Way "did not perform the payment in accordance with the original contract." This was around the same time as Way was performing its audit of Unifelix's invoices because of incorrect billing. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent's invoices. (¶19,

Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)).

CX 30 is a partial email chain that shows at most a couple of days between responses from Way. Way was not unresponsive.

Regarding the contact with Way's suppliers and vendors, on July 19, 2022, Wayne Kaylor with Complainant advised Respondent that it received information on July 19, 2022, that Respondent had approached Complainant's vendors/suppliers for payment of freight. (CX 51, 105). (¶15, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶22, Declaration of Andrew McKenna (CX 7386-7403)). Respondent did not (and does not) deny that it approached Way's vendors/suppliers, but instead on July 20, 2022, stated it had "not harassed suppliers and slandered your company. Our company collects the ocean freight from the shipper on the BL in accordance with Chinese law, which is allowed by Chinese law, on the premise that your company has not paid the freight. If you can pay the freight, our lawyer will stop asking the factory to pay the freight and stop taking the next legal measures against the factory." (CX 49-50, 106-107). (¶23, Declaration of Andrew McKenna (CX 7386-7403)). The Transport Contract does not call for the application of Chinese law. (CX 2-3). And, again, this was during the time that Way was forced to audit Unifelix's invoices.

14. After the terms of delivery were renegotiated, Way took the necessary steps to have the 20 containers picked up from the railyard and taken to its warehouse. (Decl. of R. Huang ¶17)

RESPONSE: Denied. The Declaration of Ms. Huang is a nullity because it is unsigned and should not be considered as evidence.

To the extent that this statement implies that the terms of the Transport Contract were renegotiated, denied. After the pickup numbers were provided, Complainant arranged for truck transportation to remove the 20 Containers from the Chicago yard to avoid incurring additional demurrage charges. (CX 178, 326, 391, 428, 456, 497, 540, 588, 631, 675, 720, 767, 877, 961, 1051, 1108, 1207, 1281, and 1340). (¶30, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶55, Declaration of Andrew McKenna (CX 7386-7403)).

15. Notices of arrival for the 20 containers was provided prior to the last free day for each of those containers, including the two containers identified by Way as allegedly having late notices of arrival, FANU1742269 and TXGU7118415. (Decl. of R. Huang ¶20; Emails between Unifelix and Way)

RESPONSE: Unifelix does not state an “exact citation to evidence that the party contends will support the proposed finding of fact,” in violation of the instruction contained within the Scheduling Order dated February 8, 2023. “Judges are not like pigs, hunting for truffles buried in briefs.” *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir. 1991). Because it was unsigned, the Declaration of Ms. Huang is a nullity and should not be considered as evidence.

Unifelix has not provided any evidence that the notices for Containers FANU1742269 and TXGU7118415 were timely. Based on the documentation reviewed by Complainant, Containers FANU1742269 and TXGU7118415, both part of the 20 Containers, started to accrue demurrage charges before Complainant was notified by Respondent that the containers were even in Chicago. (CX 365-373, 374-375, 393-395, 918-928, 936-942, 943). (¶60, Declaration of Andrew McKenna (CX 7386-7403)). See chart at ¶83, p. 22, of Complainant’s Brief.

16. Any demurrage incurred due to delay in arranging the pickup of the containers was solely the fault of Way. (Decl. of R. Huang; Decl. of G. Kardian)

RESPONSE: Unifelix does not state an “exact citation to evidence that the party contends will support the proposed finding of fact,” in violation of the instruction contained within the Scheduling Order dated February 8, 2023. “Judges are not like pigs, hunting for truffles buried in briefs.” *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir. 1991). Because it was unsigned, the Declaration of Ms. Huang is a nullity and should not be considered as evidence.

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By September 9, 2022, Way offered to pay \$449,575 for outstanding charges listed by Respondent (the total of which was \$465,270 listed by Respondent without backup documentation) after a review of Respondent’s invoices: \$412,540.00 for payment in full for sea freight for 28 containers, including the 20 Containers; \$10,400.00 for partial payment of delivery fees for 8 unrelated containers (the delivery fees listed by Unifelix were significantly above market rate); and \$26,635.00 for unknown additional costs for 8 unrelated containers under protest. (CX 82-83). (¶40, Declaration of Andrew McKenna (CX 7386-7403)).

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Demurrage had accrued on the 20 Containers because Respondent would not provide the trucking services from the Chicago rail station to Complainant's local warehouse. (¶25, Declaration of Salvatore B. Guasto (CX 7404-8011)). Without the pickup numbers, the 20 Containers continued to accrue demurrage charges. (¶45, Declaration of Andrew McKenna (CX 7386-7403)).

The unpaid demurrage charges listed in the September 15, 2022 email (CX 93, 112) were for the following containers which were NOT part of the 20 Containers: UFS22050434 (container FANU1103798)(CX 114-115); UFS22050690 (container FSCU7164495)(CX 114-115); UFS22050740 (container HLXU8148845)(CX 114-115); UFS22050783 (container HLBU2241172)(CX 150); UFS22060607 (container HLBU1011473)(CX 150); UFS22050423 (container FANU1503412)(CX 114-115); and a MSK invoice in the amount of \$76,540 which correlates to 19 unrelated containers (CX 4615-4617). (CX 93, 112). (¶27, Declaration of Salvatore B. Guasto (CX 7404-8011)).

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ARGUMENT

I. The Transport Contract was a valid contract and Unifelix did breach it.

In the Response Brief, Respondent attempts to somewhat inconsistently paint the Transport Contract between the parties as a memorandum of understanding. Yet, Respondent also refers to the Transport Contract as the “contract governing the delivery of the cargo,” (Response Brief at pg. 10) and “contractually mandated terms” (Response Brief at pg. 11). Under Respondent’s theory, “neither party was bound to perform any action under its terms.” (Response Brief at pg. 17). The existence of a valid contract is beyond any reasonable dispute.

There is zero evidence that the parties, or even just Unifelix, viewed the Transport Contract as anything less than a binding contract between the parties. See, for example, the following email exchanges from Unifelix referring to Way’s alleged breach of the contract or attempts to change the terms of the Transport Contract or to the Transport Contract as it rightfully is – a contract:

- June 14, 2022 “according to the contract” (CX 6-7)
- June 28, 2022 “[b]efore our cooperation, we have signed a contract, the payment term we get a deal is you should pay us the freight within 7 days after you receive the containers” (CX 6132)
- July 22, 2022 “as agreed in the contract, ” “our company requires to change the contract terms,” “sign the new contract” (CX 12-13)
- July 25, 2022 “the original contract,” “breach of contract,” “[p]lease see attachment the new contract” (CX 11)
- July 26, 2022 “the old contract” (CX 40)
- July 27, 2022 “you broked [sic] the contract firstly” CX 5593-5594)
- July 28, 2022 “breach of contract” (CX 36)

- August 3, 2022 “according to old contract” (CX 5864)
- September 16, 2022 “seriously violates the contract,” “according to the contract” (CX 5280)
- November 1, 2022 “Way Interglobal broke the contract first” (CX 7095)³

Additionally, Respondent never raised any motion that the Transport Contract was not an actual contract. In Respondent’s Verified Answer to Verified Complaint, Respondent states at ¶8, “Respondent Shenzhen admits that it entered into a service contract with Way, states that the service contract speaks for itself, and denies the remaining allegations set forth in Paragraph 8 of the Verified Complaint.” Accordingly, the existence of a valid contract between the parties has been admitted and should be viewed as a judicial admission requiring no proof. *Christian Legal Soc’y Ch. of the Univ. of Cal. v. Martinez*, 561 U.S. 661, 678, 130 S. Ct. 2971, 2983 (2010)(citing *Oscanyan v. Arms Co.*, 103 U.S. 261, 263, 26 L. Ed. 539 (1881) (“The power of the court to act in the disposition of a trial upon facts conceded by counsel is as plain as its power to act upon the evidence produced.”)).

Even if the Transport Contract does not meet the criteria as an NVOCC Service Arrangement, 46 CFR § 531.6, it is nonetheless a valid agreement over which the Commission has ancillary jurisdiction over a breach of the Transport Contract. “Relying on the principles stated in *Cargo One*, the Commission has held that jurisdiction over a complaint alleging violations of the Shipping Act exists even though a proceeding in another forum may have resolved some issues between the parties.” *YSN Imports Inc. d/b/a/ Flame King, Complainant v. Feige “Peggy” Oberlander, U Shippers Group Inc., U Shippers Group Management Co., Inc.*, 2021 FMC LEXIS 104, *5.

³ The Verified Complaint in this matter was served October 21, 2022.

Additionally, the Transport Contract establishes what is and what is not reasonable as to Unifelix's actions and inactions in providing its services to Way as an NVOCC. "The Supreme Court has held that the reasonableness standard [under the Shipping Act] requires that the 'charge levied [must be] reasonably related to the services rendered.' *Volkswagenwerk Aktiengesellschaft v. FMC*, 390 U.S. 261, 282, 19 L. Ed. 2d 1090, 88 S. Ct. 929 (1968); see also *Baton Rouge Marine Contractors, Inc. v. FMC*, 210 U.S. App. D.C. 393, 655 F.2d 1210 (D.C. Cir. 1981)." *Plaquemines Port*, 267 U.S. App. D.C. 238, 838 F.2d 536, 547. Accordingly, a valid contractual relationship existed between the parties that established the expectations and reasonable standards of performance in the provision of services by Unifelix as an NVOCC to its customer, Way.

As set forth in the Proposed Findings of Fact and as detailed below, Unifelix breached not only its duties under the Shipping Act, but also under the Transport Contract and the underlying duty of good faith that is contained within every maritime contract. As many courts have stated, "[e]very maritime contract imposes an obligation of good faith and fair dealing between the parties," *F.W.F., Inc. v. Detroit Diesel Corp.*, 494 F. Supp. 2d 1342, 1359 (S.D. Fla. 2007) (collecting cases), *aff'd*, 308 F. App'x 389 (11th Cir. 2009)." *Freepoint Commodities LLC v. Ridgebury Kilo LLC*, 632 F. Supp. 3d 549, 560 (S.D.N.Y. 2022). Accordingly, Unifelix's argument on this point, which flows throughout its Response Brief, must fail based on the undisputed facts and the law.

II. Unifelix's actions did violate 46 U.S.C. §41102(c)&(d).

Unifelix tries to wave a magic wand and blithely state that the payments it exacted from Way were not for unrelated containers. Unifelix attempts to create some sort of temporal excuse for its demands for payments of ocean freight, demurrage, and other charges for the unrelated containers, claiming, without proof, that the unrelated containers were not "earlier" than the 20

Containers. This completely misses the fundamental basis for a lien upon cargo. The lien upon cargo exists upon that cargo alone. A carrier who holds up cargo and exacts any charge unrelated to that cargo before its release has violated its duties under the Shipping Act. As stated in *Tianshan, Inc. V. Tianjin Hua Feng Transport Agency Co., Ltd.*, 2011 FMC LEXIS 9, *2 (Docket No. 08-04, March 9, 2011), “[d]emand for payment of charges for unrelated shipments cannot be used by a carrier as justification for refusing to release cargo and violates section 10(d)(1).” The focus is not related to the timing of delivery of cargo; the focus is on a carrier unlawfully exacting charges for unrelated cargo.

Unifelix offers no case law to support its argument that the 20 Containers were somehow related to the other unrelated containers, to justify asserting a lien and refusing to release the 20 Containers until ALL charges of ALL containers were paid in full. Such an argument is nonsensical as the containers were shipped under various separate bills of lading and the containers all arrived at various times. *See* Complainant’s Brief, pp. 28-29. Moreover, the bills of lading issued by Unifelix included an inland delivery point. Accordingly, those charges related to demurrage at the inland railyard are charges that the FMC maintains jurisdiction and oversight. *See Norfolk S. Railway Co. v. Kirby*, 543 U.S. 14, 27 (2004) (“Conceptually, so long as a bill of lading requires substantial carriage of goods by sea, its purpose is to effectuate maritime commerce – and thus it is a maritime contract. Its character as a maritime contract is not defeated simply because it also provides for some land carriage.”); *see generally* Appendix Sections 11-30, and CX 4655, 4660, 4666, 4699, 4674, 4677, 4679, 4681, 4686, 4688, 4692, 4695, 4699, 4707, 4711, 4715, 4720, 4721, 4722, 4727, 4730, 4732, 4735, 4738.

The undisputed facts show that they were and Unifelix offers no case law to support its argument. Unifelix’s financial pressures had nothing to do with Way and are not an excuse for

Unifelix to not perform its services as an NOVCC to Way as agreed. “The loss of performance capability caused by a contractor’s financial condition constitutes a constructive abandonment of performance or anticipatory breach entitling the government to terminate for default. *Overhead Elec. Co.*, ASBCA No. 25656, 85-2 BCA P 18,026, aff’d, 795 F.2d 1019 (Fed. Cir. 1986).” *Mergentime Corp. v. Wash. Metro. Area Transp. Auth.*, 400 F. Supp. 2d 145, 234 (D.D.C. 2005)

As early as June 14-15, 2022, while most of the 20 Containers were in transit from China (CX 188-193, 203-271, 332-346, 398-402, 431-435, 549-553, 591-595, 634-638, 678-682, 723-727, 769-780, 1116-1127, and 1348-1391), Unifelix requested that Way pay extra because of financial pressure on its company. (CX 5-7). Beginning in early July 2022, Way began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due, which required an extensive audit of Respondent’s invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)). This audit took time because of the lack of backup documentation for Respondent’s invoices. (¶19, Declaration of Andrew McKenna (CX 7386-7403)). Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (¶20, Declaration of Andrew McKenna (CX 7386-7403)). There is an email dated July 25, 2022 which also references that Way made a payment of \$746,617 for 46 containers. (CX 6084). After Way’s audit, Way paid Unifelix \$983,780 on July 30, 2022 for 65 invoices (not part of the 20 Containers). (CX 6074-6076). Later, on September 9, 2022, Way offered to pay \$449,575 for outstanding charges listed by Respondent (the total of which was \$465,270 listed by Respondent without backup documentation) after a review of Respondent’s invoices: \$412,540.00 for payment in full for sea freight for 28 containers, including the 20 Containers; \$10,400.00 for partial payment of delivery fees for 8 unrelated containers (the delivery fees listed by Unifelix were significantly above market rate); and \$26,635.00 for unknown

additional costs for 8 unrelated containers under protest. (CX 82-83). (¶40, Declaration of Andrew McKenna (CX 7386-7403)). Respondent agreed to the payment of \$449,575 on September 2, 2022. (CX 82). (¶41, Declaration of Andrew McKenna (CX 7386-7403)).

It is abundantly clear that Unifelix's actions in this matter were an anticipatory repudiation of the contract, relieving Way of any obligation to otherwise comply with the contract. *The Eliza Lines*, 199 U.S. 119, 129, 26 S. Ct. 8, 10 (1895)("[T]he completion of the voyage and delivery of the cargo are absolute conditions to the undertaking to pay freight.")(where vessel captain abandoned the voyage, cargo was relieved of the obligation to pay freight.) On page 6 of the Response Brief, Unifelix admits that "[d]ue to Way's failure to pay and the delays caused by significant port congestion, Unifelix simply could not continue to deliver cargo to Way's warehouse and obtaining payment after delivery." Nevertheless, Unifelix continued to hold the 20 containers hostage and refused to complete the delivery as originally agreed between the parties. A fact that Unifelix admits at p. 11 of its Response Brief. Unifelix's actions were unjust and unreasonable and in violation of 46 U.S.C. §41102(c)&(d).

After Unifelix finally released the hostage 20 Containers by providing the pickup numbers, Way acted with reasonable diligence and arranged for truck transportation to remove the 20 Containers from the Chicago yard to avoid incurring additional demurrage charges. (CX 178, 326, 391, 428, 456, 497, 540, 588, 631, 675, 720, 767, 877, 961, 1051, 1108, 1207, 1281, and 1340). (¶30, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶55, Declaration of Andrew McKenna (CX 7386-7403)). Unifelix's arguments on this point fail based upon the undisputed facts and the law.

III. Unifelix violated 46 U.S.C. §41103(a)(1).

Unifelix attempts to change the standard of a violation of 46 U.S.C. §41103(a)(1) by claiming it disclosed “truthful” information. By making such an argument, Unifelix has inadvertently admitted that it indeed violated its statutory duties because the standard doesn’t prohibit the disclosure of false information. The standard prohibits the disclosure of any information that was used for the detriment or prejudice of Way. *Earlean Edwards Dukart v. Ocean Star International Inc., D/B/A International Van Lines*, 2 F.M.C.2d 118, **131, 2020 FMC LEXIS 149, *29 (July 10, 2020)(dismissal of claim under 46 U.S.C. §41103(a)(1) for failure to allege the disclosure of the prohibited information). Way stands by the detailed facts and the law presented. Unifelix’s arguments on this point fail based on the undisputed facts and the law.

IV. Unifelix violated 46 U.S.C. §41104(a)(10).

Amazingly, on page 17 of Unifelix’s Response Brief, it argues that it had no obligation to deliver the containers to Way’s warehouse because, it erroneously claims, there was no binding contract. Yet, Way has provided extensive evidence that there was indeed a binding contract between the parties, that Unifelix had been delivering that door-to-door and Unifelix violated those terms when it ceased performing the final leg of delivery to Way’s warehouse. This obligation to deliver to Way’s warehouse is the trigger for the timing of Way’s payment obligation under the Transport Contract. *OJ Commerce, LLC v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S et al.*, 6 F.M.C. 2nd 165 (June 7, 2023) is precisely on point as to the impropriety of Unifelix’s actions. It should be noted that Unifelix failed to credibly refute that Way also objected to demurrage fees but couldn’t even object to them directly because Unifelix would not provide the ocean carrier bills of lading nor the true invoices from the related ocean carriers. Unifelix’s anticipatory repudiation of the contract is a prime example of unfair dealing to its

customer. Way repeatedly asked Unifelix for backup related to the charges it was exacting and Unifelix routinely failed and refused to provide such and instead directed that Way's cargo be held until every penny Unifelix demanded was paid, regardless if the charges were related to the 20 containers. This exact behavior is considered a violation of the Act. *Samsung Electronics America, Inc. v. Zim Integrated Shipping Services Ltd.*, Docket No. 22-302023, FMC LEXIS 414, *60 (August 23, 2023) ("Moreover, as reflected above in the August 2020 'Hold their cargo!!! ☺ ☺' email, instead of responding to SEA's request for additional information regarding charges, ZIM instead opted to implement a finance hold." *Id.*) (finding a violation of 46 U.S.C. §41104(a)(10)). Unifelix's arguments on this point fail based on the undisputed facts and the law.

CONCLUSION

For all of the foregoing reasons, Way Interglobal Network, LLC, respectfully requests an award of damages, including reparations for the actual injuries suffered by it, as well as a doubling of those amounts, a reservation for an award of attorneys' fees and costs, and any other relief deemed just and proper.

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CERTIFICATE OF SERVICE

I hereby certify that I have this 20th day of October, 2023, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail, with a courtesy copy to judges@fmc.gov.



Lindsey C. Brock III, Esq.
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